

		contract, making the nonsignatory a third party beneficiary of the arbitration agreement. In other cases, the nonsignatory was bound to arbitrate the dispute because a preexisting relationship existed between the nonsignatory and one of the parties to the arbitration agreement, making it equitable to compel the nonsignatory to also be bound to arbitrate his or her claim.’ ” (<i>Ibid.</i>) Here, GSDMIA is a third party beneficiary of the Agreement as an agent of Seko. “A third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit. The test for determining whether a contract was made for the benefit of a third person is whether an intent to benefit a third person appears from the terms of the contract.” (<i>Jensen, supra</i>, 18 Cal.App.5th 295, 301 (cleaned up).) “The rules are the same for third parties who are agents of a party to a contract. An agent for a party to a contract not made with or in the name of the agent is not a real party in interest with standing to sue on the contract. [Citations; see <i>Epic Communications, Inc. v. Richwave Technology, Inc.</i> (2009) 179 Cal.App.4th 314, 334, [agents ordinarily do not have “a cause of action based upon some third person's violation of its principal's rights,” and “[w]ithout some breach of a duty owed <i>to him</i>, [the agent] has no power to sue on the principal's claim”].) An agent acting on behalf of a principal might have standing to sue, however, if the agent has some beneficial interest in the subject matter. For example, an agent has standing to sue where a contract creates obligations for the agent as a fiduciary to the principal.” (<i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 856 (cleaned up).) The contract specifically refers to Seko’s warehouse in Jacksonville in Exhibit B. (ROA 22, Ex. 1.) Additionally, if Monster were to fail to remit payment under the terms of the contract, GSDMIA would be allowed to claim Monster breached its obligations under the contract to GSDMIA to pay its servicing in storing Monster’s goods. As the party operating the warehouse, it is evident the Agreement intends to benefit that party. However, GSDMIA has not availed itself of any other privilege or protection of California. GSDMIA accepted Monster’s products to store in Florida and its warehouse is in Florida. Finally, merely communicating with a California corporation has not been deemed to be sufficient to show a party has purportedly availed itself of California’s privileges or protections. Plaintiff points to no other contacts by GSDMIA with California. Accordingly, the Motion to Quash is granted.
8.	INFINITE LOWE RESIDENCE INC. MECIJA 2024-01433225	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiffs’ Motion for Leave to File Third Amended Complaint is CONTINUED to 9/22/26.

		Plaintiffs have failed to file a proof of service of the motion on Defendants. Plaintiffs must file a proof of timely service before the continued hearing date or the motion will be denied. (Code Civ. Proc. § 1005; Cal. Rules of Court, Rule 3.1300.)
9.	SOKEARSIN VS. BUSHARD PROPERTIES, LLC 2025-01508998	MOTION FOR LEAVE TO FILE CROSS-COMPLAINT Defendant Bushard Properties, LLC’s unopposed motion for leave to file a cross-complaint is GRANTED. A defendant or cross-defendant may file a cross-complaint against “a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).) Code of Civil Procedure section 428.50 provides: (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. (b) Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action. Permission to file an untimely permissive cross-complaint is “solely within the trial court’s discretion.” (<i>Crocker Nat’l Bank v. Emerald</i> (1990) 221 Cal. App.3d 852, 864.) If the cross-complaint is compulsory, the court “shall grant” leave to file the cross-complaint as long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; see <i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99 [even on “eve of trial,” leave to file compulsory cross-complaint mandatory absent bad faith].) Here, Defendant moves for leave to file a cross-complaint against South Coast Paving, Inc. (“South Coast Paving”), Ada Inspection Plus, LLC (“ADA Inspection”), and ROES 1-50 for indemnity, contribution, and declaratory relief. “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.</i> (1991) 230 Cal.App.3d 30, 38.)